

Supreme Court of the State of New York
Appellate Division, First Judicial Department

Present – Hon. Dianne T. Renwick,
Sallie Manzanet-Daniels
Troy K. Webber
Peter H. Moulton
Tanya R. Kennedy,

Presiding Justice,

Justices.

Dagoberto C. Cabral,
Plaintiff-Appellant,

Motion No. 2026-00616

Index No. 806661/22

Case No. 2025-03400

-against-

Nilo D. Alcain and Pat Sementa Plumbing &
Heating Inc.,

Defendants-Respondents.

An appeal having been taken to this Court from an order of the Supreme Court, Bronx County, entered on or about April 09, 2025,

Now, after pre-argument conference and upon reading and filing the stipulation of the parties hereto, "so ordered" February 04, 2026, and due deliberation having been had thereon,

It is ordered that the appeal is deemed withdrawn in accordance with the aforesaid stipulation.

ENTERED: March 10, 2026



Susanna Molina Rojas
Clerk of the Court